

UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
Tampa Division

DAVIS, MATTHEW AARON,

Plaintiff,

v.

PASCO COUNTY FLORIDA,

Defendants.

Case No.: _____.

COMPLAINT FOR PERSECUTION
AND
SYSTEMATIC HUMAN TRAFFICKING

Respectfully submitted,

/s/ MATTHEW AARON DAVIS

DAVIS, MATTHEW AARON

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Date December 16, 2024

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7. **Terry v. Ohio, 392 U.S. 1 (1968)** – False arrests and unlawful detention.
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9. **Burlington Northern & Santa Fe Railway Co. v. White, 548 U.S. 53 (2006)** – Retaliation and First Amendment rights.
10. **Strickland v. Washington, 466 U.S. 668 (1984)** – Ineffective assistance of counsel (Sixth Amendment rights).
11. **Goldberg v. Kelly, 397 U.S. 254 (1970)** – Violation of due process rights (Fifth and Fourteenth Amendments).

12. **Gideon v. Wainwright, 372 U.S. 335 (1963)** – Right to counsel and due process under the Sixth and Fourteenth Amendments.

13. **Barker v. Wingo, 407 U.S. 514 (1972)** – Right to a fair trial and effective assistance of counsel (Sixth Amendment).

14. **Furman v. Georgia, 408 U.S. 238 (1972)** – Violation of Eighth Amendment rights (cruel and unusual punishment).

15. **Stack v. Boyle, 342 U.S. 1 (1951)** – Violation of Eighth Amendment rights (excessive bail).

16. **Pickering v. Board of Education, 391 U.S. 563 (1968)** – Retaliation and First Amendment rights.

17. **Posse Comitatus Act, 1878** – Separation of military involvement in civilian law enforcement.

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I. INTRODUCTION

1. This is a civil action seeking damages and injunctive relief for the deprivation of Plaintiff's rights from persecution secured by the Constitution and laws of the United States, specifically the first, second, fourth, fifth, sixth, eighth, and fourteenth Amendments, as well as violations of systematic human (child) trafficking by PASCO COUNTY FLORIDA. Threw systematic illegal means by strategically timed actions by authorities. The Special Investigations team that where employed to conduct a states attorney investigation of MATTHEW AARON DAVIS, were able to completely control the

Plaintiffs life and all interactions within it. With the help of the local PASCO COUNTY FLORIDA judicial system both could guarantee the false convictions and trafficking of the Plaintiffs children's custody from the concurrent running child dependency case that was opened in regards to charges that were never formally filed but rather used to initiate the systematic human trafficking of the children from the Plaintiffs sole custody to the highest bidder. This suit is an attempt to seek redress for these Constitutional violations and the systematic destruction of a PASCO COUNTY FLORIDA first responders family due to national origin.

II. JURISDICTION AND VENUE

2. This Court has jurisdiction under **28 U.S.C. § 1331**, which grants district courts authority over civil actions arising under the Constitution, laws, of the United States.

3. The Court also has jurisdiction under **28 U.S.C. § 1343(a)(3)** and **(4)**, which applies to cases seeking redress for the deprivation of civil rights.

4. Plaintiff brings this action under **42 U.S.C. § 1983** to address violations of rights protected by the Constitution and federal law.

5. Venue is proper in the Middle District of Florida under **28 U.S.C. § 1391(b)**, as a substantial part of the events giving rise to the claim occurred in this district.

6. Plaintiff resides in Zephyrhills, Florida, which is within the Middle District of Florida.

7. Defendant PASCO COUNTY is located in this district and is responsible for the actions of its governmental entities, including the PASCO COUNTY Sheriff's Office, the PASCO COUNTY State Attorney's Office, PASCO COUNTY Board of County Commissioners, PASCO COUNTY Clerk of Court and the PASCO COUNTY Public Defender's Office.

8. Plaintiff holds PASCO COUNTY liable for the actions of its agents, which resulted in violations of Constitutional, federal, state and international law.

III. PARTIES

9. Plaintiff: MATTHEW AARON DAVIS, former PASCO COUNTY first responder, currently residing at:

A. MATTHEW AARON DAVIS

4624 Charter St.

Zephyrhills, FL 33542.

10. Defendants:

A. PASCO COUNTY

8700 Citizens Dr,

New Port Richey, FL 34654

IV. TIMELINE OF EVENTS

11. Plaintiff MATTHEW AARON DAVIS was born and raised in Upstate New York and moved to PASCO COUNTY, FLORIDA in 2008. Plaintiff started a family with a woman in Zephyrhills, Florida and they now have three children in common. The Plaintiff and his family enjoyed a close and stable life for 13 years until the intervention of PASCO COUNTY law enforcement and a States Attorney investigation that strategically took placed to run concurrent with a child dependency (custody) case, that resulted from a false arrest where “no information” was filed with the courthouse.

12. Through coordinated systematic unwarranted arrest Defendants systematically targeted the Plaintiff and his family, with constant violations of Constitutional Amendments inflicting permanent damage to the family unit, as the children were removed permanently and illegally from a false arrest. This suit seeks redress for the unlawful persecution that led to the destruction of the Plaintiff’s family.

13. Plaintiff started working for PASCO COUNTY, Public Works, Infrastructure, Road, and Bridge, East Side, Red Barn as an Equipment Operator I (First Responder) on February 11, 2020, and was promoted to Equipment Operator II on March 13, 2020. This position is a “First Responder” for environmental disasters. As in Florida hurricanes are a yearly event and in order for other first responders to respond they need a clear roadway to the people who need help. The " Collective Bargaining Agreement 2020" was signed as a contract to employment.

14. Plaintiff refused a drug test in May 2020 on the grounds that a Human Resources employee attempted to administer the observed test after commanding the doctor to leave the doctors office and made unreasonable offensive requests. Leaving the Plaintiff without the presence of a medical professional, in a doctors office, violating the standard procedure and his rights to privacy and dignity. Plaintiff had submitted drug screens two to three times a week for the prior two months.

15. As a result of refusing the inappropriate observed drug screen. Plaintiff was placed on inactive status and was instructed to not return to work until attending a termination hearing where he would have the opportunity to appeal his termination in violation of the "Collective Bargaining Agreement". Plaintiff collected his last paycheck on May 29th 2020 where deductions were made for his CDL class B test for \$450.00. During COVID-19 pandemic.

16. Plaintiff then filed for unemployment compensation as PASCO COUNTY as his last employer and was approved. Much to his surprise by his previous employer to PASCO COUNTY, "A1 Silt and Erosion" with no mention on his received paperwork of his employment with PASCO COUNTY.

17. On October 24, 2020, Plaintiff spoke to his neighbor, Kastine Marie Tuttle, needing home renovation (7512 Chenkin Rd, Zephyrhills, FL) work through the "Next Door" app. Plaintiff agreed to complete the work for a promised payment of 5% of the home's sale price on the day of sale.

18. Plaintiff and the mother of his children in common worked on the home located at 7512 Chenkin Rd, Zephyrhills, FL, from October 26, 2020 and completed work on January 18, 2021,. Despite the completion of the work, Kastine Marie Tuttle (Mrs. Kass) filed a burglary complaint against Plaintiff on November 22, 2020 at midnight threw her brother-in-law, a police officer named Mike Toczykowski, lead detective at PASCO COUNTY Sheriff Department at the time, who had offered her \$120,000 previously for the home. After all work was completed. The home sold for \$297,840 on February 13, 2021. Plaintiff was never paid, making his work a act of charity.

19. On December 9, 2020, the Plaintiff arrived home after working at Mrs. Kass's house and was arrested at his residence, 6819 23rd St Zephyrhills Florida 33542, for domestic battery, (case 512020MM004755MMAXES).

20. The Plaintiffs children where immediately removed by the Department of Children and Families (case 512020DR005966DRAXES) stating "failure to protect children from domestic violence". Plaintiff had sole custody of the children at that time. Domestic battery charges were later dropped as "no information" was filed by the States Attorney on February 11, 2021. Following a court hearing on January 7, 2021 Where the alleged victim,, petition the court to have the restraining order dropped stating that there was no reason for the arrest.

21. The Department of Children and Families (DCF) continued with prosecution after forcing by threat of removal of the children from their "temporary" residence with the

maternal great grandmother and placing them far away in another foster home anywhere in Florida. The mother and maternal great grandparents where forced to sign a document falsely stating that the Plaintiff who is the father and had sole custody was "explosively violent". Placing the mother as the caregiver on the document. The mother, Christina Renee Hills, at the time had no rights to the children and was not allowed to be around them due to non-compliance with Department of Children and Families parenting plan. This was done to continue the systematic human trafficking of the Plaintiffs children, denying reunification.

22. In March 2021, during the first child dependency hearing (case 512020DR005966DRAXES) four months after removal of the children. Plaintiff questioned the legalities around the removal of his children being that the charges were dropped of domestic violence. After being denied, the Plaintiff presented evidence of completing two parenting classes, anger management class and a divorce class through the DCF website between the time of removal of the children and first hearing. These classes are advertised by DCF as "nationally court approved classes". The Honorable Judge Sestek refused to recognize these certifications and mandated that Plaintiff retake the classes through PASCO COUNTY Florida, stating "Do it again threw PASCO COUNTY" prolonging the separation from his children and violating Plaintiffs rights as a father.

23. On March 9, 2021, Plaintiff was arrested on charges of burglary, fraud, and dealing in stolen property (Case No. 512021CF001143CFAXES) in a attempt by Pasco County

Sheriff to facilitate the non-payment of \$14,892.00 to the Plaintiff from repairs made before the sale of Mrs. Kass's home and satisfy the complaint of burglary filed on November 22, 2020. As a result of this loss of payment Plaintiffs and families home was lost whereas only a \$15,400.00 balance remained on a \$49,900.00 rent to own agreement.

24. The mother of the children in common and Plaintiffs co-defendant was later arrested for the same complaint on March 21, 2021. One day before the Plaintiff was placed, solely, under a State's Attorney investigation and one day before Plaintiff bonded out of jail.

25. Despite the Plaintiff bonding out on March 22, 2021 (\$15,000 bond), Only the Plaintiff was placed under a State Attorney investigation but, not the co-defendant, to run exactly concurrent with the child dependency case for his children.

26. Both cases commencing in March 2021. The mother of children in common / co-defendant was not placed under investigation as she had no custody rights to the children and even though they where both arrested for the same complaint.

27. Throughout the States Attorney Investigation gangstalking and social-gorilla warfare tactics where deployed. All of the Plaintiffs friends and family members where threatened to keep the Plaintiff away and not to associate with him, cutting all support networks. The Plaintiff, a First Responder for Pasco County on inactive status, reputation was slandered to stop any new support networks from arising. Plaintiffs

social group was dramatically altered as known criminals and people recently released from prison were employed to help the Plaintiff survive in a way that was completely alien to the way his family life was. Making him appear to be guilty by association.

28. Plaintiff experienced extreme personal, psychological, emotional and financial distress from the loss of his children, their family home, his support network of all friends and family, plus literally all personal family possessions. While being electronically harassed

29. and still awaiting his hearing regarding his termination from PASCO COUNTY Public Works as a First Responder where he planned to go back to work as there was no legal grounds for his termination and his contract states that for the offense he would be demoted to his previous position and his employer would pay for rehab if drug addiction was present for one year. Maximum penalty.

30. Due to community ostracization and harassment, including gang stalking and defamation of character. The Plaintiff was forced to live in a way he has never had to before. In complete squallor around a social group that he has never experienced before. Several threats were made to the Plaintiffs in regards to his family's safety and extensive multiple attempts on the Plaintiffs life were made during this time due to slander by police officers of Plaintiff being a rapist of children and that being the reason for their removal from his custody.

31. On August 5, 2021 after receiving multiple anonymous threats in regards to

Plaintiffs childrens and his life (documented with the FBI as Pasco County Sheriff refused to take the reports) All three of Plaintiff's children were involved in a horrendous vehicle accident and were all airlifted to hospital trauma units. The Daughter suffered permanent physical injuries to her face and was completely blinded in her right eyesight at the age of three as a result of this accident.

32. Plaintiff and co-defendant, mother of children in common with the Plaintiff, were refused access to see their children or be involved in treatment due to the ongoing dependency case and the State's Attorney investigation. After being told the children were on their deathbeds by medical personnel. This created extreme amounts of mental and emotional damage.

33. In December 2021, Plaintiff lost full custody of his children entirely due to his inability to complete the mandated classes a second time through Pasco County while under investigation by the State Attorney's Office. The children where placed in foster care of Florida State and currently remain for sale with the foster care system.

34. The criminal charges of burglary were still pursued. After fifteen months and totalling 10 documented different court appointed attorneys, of which two attorneys were reassigned to the case after a previous motion to withdrawal. All attorneys withdrew due to ethical concerns from social-guerrilla warfare slander tactics but, only after Plaintiffs request for trial did they withdraw.

35. All threw the court proceedings the Plaintiff attempted multiple

times in person and in writing to gather any and all information about his criminal court proceedings and was denied almost every time by PASCO COUNTY Sheriff Department. Stating that he could not have access to any documentation of the alleged victims statements or any information that could prove his innocence due to a misunderstanding of Marsy's Law. Rather a Brady Rule violation.

36. On July 29, 2022, after receiving exact threats and documented with the FBI. Plaintiff was shot at his legal residence protecting his personal property by Stanley Dukett Jr., a six time felon with family relations to Pasco Sheriff Officer J. Velez (5954) the forensic investigator in the ongoing criminal investigation of the Plaintiff and also relative to the Plaintiffs co-defendant and mother of his children in common threw her first born daughter in a prior relationship.

37. Despite the “Castle Doctrine” and “Stand-Your-Ground Laws”, Plaintiff was arrested by Mike Toczylowski (1865) Lead Detective of PASCO COUNTY Sheriff Department and Kastine Tuttle's brother-in-law. A clear conflict of interest.

38. After being deemed stable by medical professionals at the Hudson, Florida Regional Hospital where he arrived by emergency Bay Flight helicopter, for two counts of aggravated assault

39. All people involved including witnesses were arrested for various charges and were all later deemed guilty of something identifying no victim for the incident. (Case No. 512022CF003171CFAXES).

40. To undermine the legal system and the Plaintiffs pursuit of justice by incarcerating the Plaintiff in a attempt to coerce a plea bargain when he had made very clear to all 10 documented court appointed attorneys that he wanted to go to trial. To further delay the Plaintiffs right to fair and speedy trial he was repeatedly given council twice that had already withdrawn from his case a year prior, the use of social-guerrilla war tactics, defamation of character, attempts on Plaintiffs family life and maliciously continued prosecution, suggest persecution.

41. From March 9, 2021, to July 29, 2024, during the State Attorney investigation and post investigation, the Plaintiff filed numerous complaints with the FBI regarding the PASCO COUNTY Sheriff's Office's refusal to take his reports of electronic harassment, harassment and aggravated assault. These complaints also included dereliction of duty and failure to provide protection, gangstalking and possible attempted lynching by the community made by the Plaintiff a First Responder for PASCO COUNTY on inactive status awaiting his contract agreement to appeal his termination that he to this day has never received.

42. The Plaintiff remained incarcerated for a 285 days, during which he was repeatedly denied the right to a fair trial, effective council and was maliciously prosecuted. Plaintiff was coerced into accepting a plea deal on April 12, 2023, under threat of indefinite incarceration, months prior, until a guilty plea was signed. He was told this by a court appointed attorney as follows:

“PASCO COUNTY will never allow you to go to trial. One year, five year or the rest of your life it doesn't matter. You will have to sign a plea deal or sit here until you do. That's just the way it is. Can you imagine the headlines.”

With the Plaintiff being a employee of Pasco County as a first responder and beingb charged with five felony charges. That are all false to systematically human traffic his children.

43. After his release, Plaintiff attempted to appeal the verdict and sought post-conviction relief by asking his final court appointed lawyer Mrs. Michelle Bui to appeal the case only to be denied in writing three times. These correspondences where then docket in original case number 2021CF001143 with the Sixth Judicial Circuit Court in and of Pasco County Florida.

44. Plaintiff's attempts to have the verdict overturned were denied in writing and docketed by the Honorable Judge Gregory Groger on December 12 2023 and January 10, 2024 after informal correspondences where made by Plaintiff and docketed as “request to overturn verdict”.

45. Plaintiff continued to face defamation of character and harassment, including being falsely labeled as a rapist of children by his community due to a Facebook posting by the Pasco County Sheriff of his aggravated assault arrest and a comment section were mistaken identity occurred and the Plaintiff who has a shared name with a famous actor Matthew Davis from the show “Vampire Diaries” , was labeled a rapist. This posting

was allowed to stay in the public's view, nationally, the whole time the Plaintiff was incarcerated, then removed when the Plaintiff was released from Pasco County Jail.

46. This created immense amounts of public hatred for the Plaintiff making it almost impossible to survive. Many attempts have been made on the Plaintiffs and his families life. This is a perfect example of the social-gorilla warfare tactics used by military psyops professionals used to isolate, slander, and execute a targeted kill by one's own peers.

47. These tactics deployed, along with the defamatory actions by local law enforcement in allowing a case of mistaken identity to persist without apology or explanation, appear to be deliberate efforts to run the Plaintiff off or endanger his life in order to avoid accountability for the unlawful and potentially treasonous investigation conducted by the State Attorney's office. These actions constitute a clear violation of the **Posse Comitatus Act (18 U.S.C. § 1385)**, which prohibits the use of military forces in domestic law enforcement, and the conduct of any psychological operations (PSYOP) within the United States is strictly illegal.

48. On July 29, 2024, the Sixth Judicial Circuit Court of Pasco County, Florida, assigned Assistant Public Defender W. Randall Harper (Bar No. 0119188), from the office of the elected Public Defender Sara Mollo, to represent the Plaintiff in appeal case 2D2024-1718. The assignment was formalized on August 1, 2024."

49. the Second District Court of Appeals found the appeal to be dismissed due to

being untimely after Mr. Harper filed a motion of why case should be accepted as untimely for case 2D2024-1649 and case 2D2024-1718 collectively. Only stating why the appeal should not be heard without any consent or contact with the Plaintiff. Total disregard for constitutional violations of due process, ineffective counsel, Brady violations, lack of diligence and coerced plea deal that are apparent in the initial proceedings on a pro se appeal.

50. In an attempt to appeal the dismissed decision by the Second District Court of Appeals the Plaintiff accidentally filed a civil suit addressed for the Middle District Court House with the Sixth Judicial Circuit Court in and of Pasco County Florida under case 2021CF001143. This draft, although clearly stated for the Middle District, was filed by the Sixth Judicial Circuit and includes the names and birthdates of the Plaintiffs' children, minors. After multiple requests to the Pasco County Clerk of Court to remove the document the Plaintiff was denied his request. A clear violation of Federal and State court Procedure Rules.

51. After being released from Pasco County Corrections with donated clothes from the department, personal wallet and cellphone. Plaintiffs cell phone had been tampered with where he was not only locked out of it as the passcode had been changed. After regaining access, to Plaintiffs surprise the password to the only email the Plaintiff had possessed for the last twelve years had also been changed. Plaintiff never regained access to email. This was documented with Google at this time. Lastly the external storage SD card with over 15,000 pictures and videos of the Plaintiffs family, tax returns,

contacts and other irreplaceable documents has been erased.

52. After arriving back to Zephyrhills Florida, a community the Plaintiff has called home to him and his family for almost 20 years. He was turned away by his friends and family out of fear stating from a long time friend Timothy Bates "Trouble follows you Matt and we can't afford that kind of trouble around here."

53. Plaintiff continues to be a victim of investigational gangstalking and electronic harassment even after reporting to the county sheriff multiple times with no resolve and almost two years later still in the appeals process to find justice for his children and family.

V. SUMMARY OF EVENTS AND CIVIL RIGHTS

54. The PASCO COUNTY State Attorney's Office engaged in malicious prosecution, aiming to secure a false conviction, remove Plaintiffs children from his custody, and facilitate human trafficking for monetary gain. This prosecution was retaliatory, following issues with the employment at PASCO COUNTY.

A. Malicious Prosecution: The State Attorney's Office pursued knowingly false charges against Plaintiff, including domestic battery, burglary, dealing in stolen property, fraud and aggravated assault, in an effort to coerce a plea deal. This constitutes a violation of due process under the

a. **Fourteenth Amendment** and is actionable under **Heck v.**

Humphrey, 512 U.S. 477 (1994).

B. Failure to Disclose Exculpatory Evidence (Brady Violations): The State withheld exculpatory evidence that would have exonerated Plaintiff. Like his legal address being where he was shot violating his rights under

a. **Brady v. Maryland, 373 U.S. 83 (1963)**, further undermining right to a fair trial.

C. Coerced Plea Deal: After unlawfully detaining Plaintiff the State coerced Plaintiff into accepting a plea deal, violating the

a. **Fifth Amendment** right against self-incrimination (**Ashcraft v. Tennessee, 322 U.S. 143 (1944)**).

D. Parental Rights Interference: The State's actions were designed to strip Plaintiff of custody of his children, violating parental rights protected under

a. **Troxel v. Granville, 530 U.S. 57 (2000).**

54. Civil Rights Affected:

A. **Second Amendment** Rights: As a result of the coerced plea deal and subsequent conviction, Plaintiff lost constitutional right to bear arms, in violation of **District of Columbia v. Heller, 554 U.S. 570 (2008).**

B. Right to Vote: Conviction also led to the loss of the right to vote, protected

under the **Fourteenth Amendment** and recognized in **Richardson v. Ramirez, 418 U.S. 24 (1974)**.

- C. Due Process Rights: The malicious prosecution and coerced plea violated the rights to due process and a fair trial, which are guaranteed under the **Fifth** and **Fourteenth Amendments**.

55. The Pasco County Sheriff's Office actively participated in the wrongful arrests and detention, defamation of character, use of social-guerrilla warfare tactics during a civilian Investigation, refusal of equal protection, to further the county's agenda to human traffic Plaintiffs children.

- A. False Arrests and Unlawful Detention: Plaintiff was falsely arrested and detained multiple times, including on
- a. December 9 2020, for domestic battery where no formal charges were filed with the courthouse and Plaintiffs children were removed permanently.
 - b. March 9 2021 for burglary, fraud, and dealing in stolen property on a complaint that was file when work commenced but not resolved until after home was sold. Where the co-defendant was never investigated and the alleged victim was a resident of Kentucky.

- c. July 29 2022 for two counts of aggravated assault for protecting personal property at Plaintiffs legal residence while being shot by a six time felon with a gun who fled the scene of the shooting.
- d. These acts violated the **Fourth Amendment** right to protection from unreasonable seizures (**Terry v. Ohio, 392 U.S. 1 (1968)**).

B. Retaliatory Arrests: The Pasco County Sheriff's Office retaliated against Plaintiff for raising awareness of gangstalking, electronic harassment and pursuing trial by jury violating

- a. **First Amendment** rights to free speech and to petition the government for redress (**Hartman v. Moore, 547 U.S. 250 (2006)**).

C. Failure to Protect Parental Rights: Their actions aided in the unlawful removal of children from Plaintiff sole custody, violating parental rights under

- a. **Troxel v. Granville, 530 U.S. 57 (2000)**, and denying due process under the **Fourteenth Amendment**.

D. Military Involvement: The **Posse Comitatus Act** strictly prohibits military involvement in civilian law enforcement proceedings, especially during investigations. The use of gangstalking, slander and social-guerrilla warfare

tactics involving active duty Marine Corps is a violation of this act. During the
Plaintiffs state attorney investigation from March 22, 2021 to July 29, 2022.

56. Civil Rights Affected:

- A. **Fourth Amendment:** The unlawful arrest and detention violated the right to be free from unreasonable searches and seizures.
- B. **Parental Rights:** By contributing to the malicious prosecution, the Sheriff's Office facilitated the unlawful removal of Plaintiffs children, violating parental rights.
- C. **Due Process:** The pasco county sheriff's office's actions, in collaboration with the pasco county state attorney's office, deprived Plaintiff of the rights to a fair legal process and contributed to the coerced plea deal.

57. The Pasco County Clerk Of Court mishandled sensitive legal filings, violating federal laws and contributing to the exploitation of Plaintiffs children's private information and lack of due diligence in appointment of counsel throughout legal proceedings.

- A. **Improper Filing of a draft of a Civil Rights Lawsuit:** The Clerk's Office mistakenly filed a 95-page civil rights lawsuit intended for the Middle

District Federal Court in criminal case (2021CF001143). This document contained children's names and birthdates, violating federal privacy protections outlined in

a. Federal Rule of Civil Procedure 5.2(a).

B. Negligence in Correcting Filing Error: When Plaintiff requested the Clerk's Office to remove the improperly filed document, which exposed his children's personal information, they refused. This refusal constituted a failure to protect the privacy rights of minors, which is mandated by both federal and state law in

a. Violation of the Privacy Act of 1974 (5 U.S.C. § 552a)

b. Violations 14th Amendment Due Process:

C. Ineffective appointment of counsel after ten documented court appointed counsel was given to the Plaintiff in case number 2021CF001143 from four different court appointed law offices just to be threatened with indefinite incarceration, while Incarcerated, unless Plaintiff signs a guilty plea.

a. Sixth Amendment (Strickland v. Washington)

b. Fourteenth Amendment (Due Process)

- c. **Gideon v. Wainwright (1963)**
- d. **Brady v. United States (1970)**
- e. **18 U.S.C. § 242 (Deprivation of Rights Under Color of Law)**

58. Civil Rights Affected:

- A. Right to Privacy: The improper filing and refusal to remove the document containing Plaintiff children's personal information violated their right to Federal Privacy, protected under the

- a. **Fourteenth Amendment Due Process**

- B. Due Process: The Clerk's mishandling of court filings denied the ability to properly navigate the legal system, violating procedural due process rights under the

- a. **Fifth Amendments**

- b. **Fourteenth Amendment Due Process**

59. The Pasco County Public Defender's Office assigned William Randall Harper to represent the Plaintiff in appeal, despite initial Pro Se status. Harper submitted a draft to the court arguing that the appeal was untimely and should not be heard, directly contradicting the Plaintiffs own arguments and without consent or consultation..

A. Ineffective Assistance of Counsel: Harper's actions, including submitting a draft that argued against Plaintiffs interests, violated the **Sixth Amendment** right to effective assistance of counsel, as established in **Strickland v. Washington, 466 U.S. 668 (1984)**.

B. Due Process Violations: Harper's failure to represent Plaintiffs interests and address critical issues such as Brady violations, coerced plea deals, and lack of due diligence further violated the right to due process under the **Fourteenth Amendment**.

60. Civil Rights Affected:

- A. **Sixth Amendment:** right to effective legal representation was denied when appointed counsel acted against the Plaintiffs wishes and interests.
- B. Due Process: The mishandling of appeal, particularly by not addressing due process violations in the original conviction, further violated rights under the **Fifth and Fourteenth Amendments**.

61. The PASCO COUNTY officials' actions taken against the Plaintiff, which led to wrongful persecution and the unlawful removal of children were initiated following retaliation by PASCO COUNTY after Plaintiff raised employment-related issues and was retaliated against

- A. Retaliation: The retaliation from a former employer for raising legitimate concerns of medical proceedings, which contributed to my wrongful prosecution, violated my **First Amendment** rights to petition and to be free from retaliation (**Burlington Northern & Santa Fe Railway Co. v. White, 548 U.S. 53 (2006)**).

- B. Conspiracy to Violate Civil Rights: The coordination between Pasco County officials and law enforcement to unlawfully prosecute and harass the Plaintiff and his family constitutes a conspiracy to violate civil rights under **42 U.S.C. § 1985**.

62. Civil Rights Affected:

- A. **First Amendment:** The retaliatory actions following the Plaintiff being placed on "inactive status" from his employment as a first responder for PASCO COUNTY. Free speech and to petition the government for redress without retaliation.

- B. Due Process: The retaliatory actions, combined with the legal violations committed by other entities, denied me fair legal proceedings, violating the **Fifth and Fourteenth Amendment** rights..

VI. STATEMENT OF LEGAL CLAIMS

63. Count 1: Violation of Fourth Amendment Rights

A. Defendants violated Plaintiff's Fourth Amendment rights by conducting unlawful arrests and searches without probable cause or due process, as established in **Terry v. Ohio, 392 U.S. 1 (1968)** and **Mapp v. Ohio, 367 U.S. 643 (1961)**.

B. Violation of rights found in paragraph: 17, 18, 25, 33, 35.

64. Count 2: Violation of Fifth and Fourteenth Amendment Rights

A. Defendants violated Plaintiff's due process rights under the Fifth and Fourteenth Amendments by denying fair legal proceedings and proper legal representation, as established in **Goldberg v. Kelly, 397 U.S. 254 (1970)** and **Gideon v. Wainwright, 372 U.S. 335 (1963)**.

B. Violation of rights found in paragraph: 20, 24, 27, 29, 32, 39, 53.

65. Count 3: Violation of Sixth Amendment Rights

A. Defendants violated Plaintiff's **Sixth Amendment** rights by denying him the right to a fair trial and effective assistance of counsel, as established in **Strickland v. Washington, 466 U.S. 668 (1984)** and **Barker v. Wingo, 407 U.S. 514 (1972)**.

B. Violation of rights found in paragraph: 39, 41, 42, 53

66. Count 4: Violation of Eighth Amendment Rights

A. Defendants violated Plaintiff's Eighth Amendment rights by subjecting him to excessive bail, fines, and cruel and unusual punishment, as established in **Furman v. Georgia, 408 U.S. 238 (1972)** and **Stack v. Boyle, 342 U.S. 1 (1951)**.

B. Violation of rights found in paragraph: 39, 40.

67. Count 5: Violation of First Amendment Rights

A. Defendants violated Plaintiff's **First Amendment** rights by retaliating against him for exercising his right to refuse an inappropriate drug test and for seeking legal recourse, as established in **Pickering v. Board of Education, 391 U.S. 563 (1968)**.

B. Violation of rights found in paragraph: 14.

68. Count 6: Posse Comitatus Act Violation 1878

A. Separation of military involvement within civilian law enforcement official business and proceedings. To include any investigation or interrogational aspects of civilian law violations.

B. Violation can be found in paragraph: 38, 39

VII. PRAYER FOR RELIEF WHEREFORE,

69. Plaintiff demands jury trial and requests that this Court:

- A. Declare that Defendants' actions violated Plaintiff's constitutional rights.
- B. Grant injunctive relief to return custody of Plaintiffs children to Plaintiff and safe passage to upstate New York.
- C. Grant injunctive relief punishing Defendants for illegal pursuit of unlawful practices and a thorough investigation of Defendants past, present and future removal of children by a outside military entity to ensure all human and Constitutional rights are upheld.
- D. Award Plaintiff reasonable attorney fees and cost pursuant to **42 U.S.C. Statue 1988** and any cost incurred throughout these proceedings.
- E. Grant any other and further relief as the Court seems just and proper.

Respectfully submitted,

/s/ MATTHEW AARON DAVIS

MATTHEW AARON DAVIS
4624 Charter St
Zephyrhills FL 33542

656-212-3599

DavisMatthewA2024@gmail.com

Date: December 16, 2024

UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

DAVIS, MATTHEW AARON

Case No.:

Plaintiff,

v

PASCO COUNTY FLORIDA

Defendant.

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Complaint for Violation of Civil Rights Under **42 U.S.C. § 1983** was served upon the following parties by United States Postal Service, certified mail, return receipt requested, on this day of , in year

PASCO COUNTY ATTORNEY'S OFFICE:

Pasco County Government Center
8731 Citizens Drive, Suite 340
New Port Richey, FL 34654

Under penalties of perjury, I declare that I have read the foregoing Certificate of Service and that the facts stated in it are true.

Respectfully submitted,

/s/ MATTHEW AARON DAVIS

MATTHEW AARON DAVIS
4624 Charter St
Zephyrhills, FL 33542
DavisMatthewA2024@gmail.com

Date December 16, 2024

UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

Case No. _____

DAVIS, MATTHEW AARON
Plaintiff,

v.

PASCO COUNTY FLORIDA,
Defendants.

MOTION TO REQUEST CERTIFIED COPIES OF ALL RELATED COURT CASES

Plaintiff, MATTHEW AARON DAVIS, hereby moves this Honorable Court to order the clerks of the respective courts to produce certified copies of all court cases related to the Plaintiff's claims in this matter. In support of this motion, Plaintiff states as follows:

Plaintiff is currently pursuing a civil rights action against Pasco County, Florida, and related entities under **42 U.S.C. § 1983**.

Plaintiff's claims involve multiple incidents and legal proceedings across different entities within Pasco County, Florida. Including:

PASCO COUNTY ATTORNEY'S OFFICE:
Pasco County Government Center
8731 Citizens Drive, Suite 340
New Port Richey, FL 34654

Plaintiff requires certified copies of all related court cases to present a comprehensive and accurate record to support his claims.

The Sixth Judicial Circuit Court of Pasco County court cases and documents requested include, but are not limited to:

- Case No. 512020MM004755MMAXES (Domestic Battery)

- Honorable Judge Linda Babb
- Case No. 512021CF001143CFAXES (Burglary, Fraud, and Dealing in Stolen Property)
 - Honorable Judge Gregory Groger
- Case No. 512022CF003171CFAXES (Aggravated Assault)
 - Honorable Judge Gregory Groger

In the Second District Court of Appeals court cases and documents requested include, but are not limited to:

- Case No.: 2D2024-1718 (Appeal)
- Case No.: 2D2024-1649 (Appeal)

WHEREFORE, Plaintiff respectfully requests that this Court issue an order directing the clerks of the respective courts to provide certified copies of all related court cases and documents as identified above.

Respectfully submitted,

/s/MATTHEW AARON DAVIS

MATTHEW AARON DAVIS
4538 Charter St.
Zephyrhills, FL 33542
DavisMatthewA2024@gmail.com

Date December 16, 2024

UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

Case No.: _____.

DAVIS, MATTHEW AARON,
Plaintiff,

v.

PASCO COUNTY FLORIDA,
Defendants.

MOTION TO PROCEED IN FORMA PAUPERIS

I, MATTHEW AARON DAVIS, declare that I am the plaintiff in the above-entitled proceeding; that in support of my request to proceed without being required to prepay fees, costs, or give security therefor, I state that because of my poverty I am unable to pay the costs of said proceeding or to give security therefor; and that I believe I am entitled to relief. The nature of my action is briefly stated as follows:

The Plaintiff experienced systematic violations of their civil rights by the police and state attorney, marked by a series of actions that undermined their legal protections and personal freedoms. The Plaintiff was subjected to unlawful arrest on false charges of domestic violence, despite not being at home during the alleged incident. This false arrest led to the removal of the Plaintiff's children by child protective services, causing significant emotional and personal distress. Despite the charges never being formally filed, the Plaintiff faced ongoing challenges in regaining custody of their children.

Throughout the legal process, the Plaintiff encountered significant barriers to effective legal representation. There was excessive turnover among court-appointed lawyers, and the Plaintiff's attorney refused to file an appeal post-conviction. Also denied by the judge. Furthermore, the Plaintiff was denied access to crucial evidence, such as police reports and video footage, which hampered their ability to mount a defense and understand the case against them. This lack of transparency and access violated the Plaintiff's right to due process and further limited their ability to challenge the charges.

Beyond the legal system, the Plaintiff experienced harassment and intimidation, including

electronic harassment and subliminal threats against their family. These actions were ignored by authorities, contributing to an environment of fear and hostility. The Plaintiff also faced community defamation, with false narratives impacting their reputation and personal life. The cumulative effect of these actions, compounded by apparent bias due to the Plaintiff's employment with Pasco County, constituted systematic targeting that violated the Plaintiff's civil rights and inflicted substantial personal, legal, financial harm and lastly the permanent removal of the Plaintiffs children. Destroying a good American family of five.

In further support of this application, I answer the following questions:

1. Are you presently employed?

-a. No

2. If the answer is "no," state the date of last employment and the amount of the salary and wages per month which you received.

A. Last Employer:

a. Pasco County Florida Board of County Commissioners,
Public Works Division

B. Position:

a. Equipment Operator II

C. Date placed on inactive status:

a. May 2020

D. Salary and wages per month:

a. Approximately \$500 per week

3. Have you received within the past twelve months any money from any of the following sources?

A. Business, profession, or other self-employment:

a. Yes, \$4,200.00

B. Rent payments, interest or dividends:

a. No

C. Pensions, annuities, or life insurance payments:

a. No

D. Disability or workers compensation payments:

a. No

E. Gifts or inheritances:

a. No

F. Any other sources:

a. No

4. Do you have any cash or checking or savings accounts?

a. Yes, a checking account with \$1.43 and a savings account with \$0.73

5. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)?

a. No

6. Describe the house, real estate, stocks, bonds, notes, automobiles, or other valuable property owned by you.

a. None

7. List the persons who are dependent upon you for support, state your relationship to those persons, and indicate how much you contribute toward their support.

a. Name: B.D.

b. Relationship: Daughter

c. Address: 11960 Chesterfield Rd, Dade City, Florida 33525

d. Monthly Contribution: \$409.00

8. List your regular monthly expenses.

a. Child Support: \$409.00

b. Other Expenses: None

I declare under penalty of perjury that the foregoing is true and correct.

Executed on this day of

Respectfully submitted

/s/ MATTHEW AARON DAVIS

MATTHEW AARON DAVIS

4624 Charter St

Zephyrhills, FL 33542

Email: DavisMatthewA2024@gmail.com

Date December 16 2024

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Motion to Proceed In Forma Pauperis has been furnished by U.S. Mail, process server, hand delivered, e-service, ect. to:

PASCO COUNTY ATTORNEY'S OFFICE:

Pasco County Government Center
8731 Citizens Drive, Suite 340
New Port Richey, FL 34654

Respectfully submitted on this 16 day, in the month of December year 2024 .

/s/ MATTHEW AARON DAVIS

MATTHEW AARON DAVIS
4624 Charter St
Zephyrhills, FL 33542
DavisMatthewA2024@gmail.com

Date: December 16 2024

ORDER

The court has reviewed the Motion to Proceed In Forma Pauperis and it is hereby:

☐ GRANTED

☐ DENIED

DONE AND ORDERED in Tampa, Florida, this 30 day of January 2025

United States District Judge

UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

Case No.:

DAVIS MATTHEW AARON

Plaintiff,

vs.

PASCO COUNTY, FLORIDA,

Defendants.

SUMMONS

Plaintiff

MATTHEW AARON DAVIS
4624 Charter St
Zephyrhills, FL 33542

Defendants

Pasco County
c/o County Attorney
West Pasco Government Center
8731 Citizens Drive
New Port Richey, FL 34654

YOU ARE HEREBY SUMMONED and required to serve upon the plaintiff, MATTHEW AARON DAVIS, whose address is listed below, an answer to the complaint that is herewith served upon you within 20 days after service of this summons on you, exclusive of the day of service. If you

fail to do so, a judgment by default will be taken against you for the relief demanded in the complaint.

ANSWER DUE DATE: Within 20 days of service of this Summons and Complaint.

SERVICE OF PLEADINGS: Serve the answer or any other pleadings on the Plaintiff at the address below:

/s/ MATTHEW AARON DAVIS
Matthew Aaron Davis
4624 Charter St.
Zephyrhills, FL 33542
Phone: 655-212-3599
Email: DavisMatthewA2024@gmail.com

Date December 16 2024

UNITED STATES DISTRICT COURT

MIDDLE DISTRICT OF FLORIDA

Tampa Division

Case No.:

MATTHEW AARON DAVIS,

Plaintiff,

vs

PASCO COUNTY

Defendant.

DESIGNATION OF EMAIL ADDRESS FOR PARTY NOT REPRESENTED BY ATTORNEY

COMES NOW, the undersigned, Matthew Aaron Davis, a party to this action who is not represented by an attorney, and pursuant to Florida Rule of Judicial Administration 2.516(b)(1)(C), hereby designates the following email address for service of court documents in this case:

1. Primary Email Address: DavisMatthewA2024@gmail.com

I understand that service of court documents will be made to the email address designated above, and I will be responsible for checking this email regularly for important court documents and notices.

Respectfully submitted on December 16, 2024

/s/ MATTHEW AARON DAVIS

Matthew Aaron Davis
4624 Charter St.
Zephyrhills, Florida 33542
655-212-3599
DavisMatthewA2024@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Motion to Proceed In Forma

Pauperis has been furnished by U.S. Mail, process server, hand delivered, e-service, ect. to:

PASCO COUNTY ATTORNEY'S OFFICE:

Pasco County Government Center
8731 Citizens Drive, Suite 340
New Port Richey, FL 34654

Respectfully submitted

/s/MATTHEW AARON DAVIS

MATTHEW AARON DAVIS
4624 Charter St
Zephyrhills, FL 33542
DavisMatthewA2024@gmail.com

Date December 16 2024